

Dispute Chamber

Decision on the merits 72/2025 of April 22, 2025

File number: DOS-2021-00561

Subject: Complaint against a data broker

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, chair, and Messrs. Jelle Stassijns and Frank De Smet;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter GDPR;

Considering the Act of December 3, 2017, establishing the Data Protection Authority, hereinafter WOG;

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

has made the following decision regarding:

The complainant:

X, hereinafter “the complainant”

The defendant:

Y, represented by Master Wim Wijsmans, hereinafter “the defendant”

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I. Facts and procedure

1. Mr. X (hereinafter, “the complainant”) is managing partner at company Z1. After receiving a direct marketing email from Z2 International Sarl, he submits a request to the latter for the deletion of his data.

On January 15, 2021, Z2 International informs the complainant that it has obtained the data of Y (the defendant) and has added it to its database as of January 7, 2021. It further states that the relevant data has now been removed from its database.

Subsequently, on January 15, 2021, the complainant sends a request for access to the defendant. More specifically, he requests an overview of all data that the defendant has collected about him, how the data was obtained, when the data was obtained, from which source the data was obtained, from which intermediaries the data was obtained, to which parties the data was transferred, the retention period, and how the data was processed. Furthermore, the complainant states in the same email that he was not informed in accordance with Articles 13 and 14 GDPR at the time of data collection or at the latest one month after processing or at the time of first contact. Additionally, the complainant refers to the usage rules of the Crossroads Bank for Enterprises (KBO), based on which it would be unlawful to use personal data from the KBO for direct marketing purposes. The complainant also demands that the defendant cease all processing of his data and delete the data after he has obtained access.

On January 29, 2021, the defendant responds to the complainant's email. The defendant states that it is a supplier of a platform on which organizations can map their business target audience in great detail. This service can serve as a starting point for analyses, enrichments, or marketing and sales actions.

The defendant informs the complainant that the data it processes consists solely of the data of the complainant's organization as registered with the KBO. It attaches a copy of the data in the appendix of the email.

The defendant confirms that the complainant's data will be removed from its database and that an automated deletion request will be communicated to its clients. Regarding the complainant's question about the recipients of the data, the defendant states that, firstly, this would require an disproportionate effort, and secondly, that this is not a requirement under the GDPR, as naming the ‘categories’ of recipients is sufficient, namely: “organizations that value high-quality data.”

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support for B2B marketing and sales actions, analyses of business target groups, and keeping carefully built business databases up to date.” Finally, the respondent believes that they have never approached the complainant for marketing or sales purposes, and that the complainant's assertion that they have an active role regarding the direct marketing communication he received from Z2 is therefore incorrect. The respondent states that Z2 has incorrectly used their services by unsolicitedly sending a commercial message to the complainant's email address. The respondent informs the complainant that they will take appropriate action in this regard.

2. On February 1, 2021, the complainant files a complaint with the Data Protection Authority against the respondent. The complainant states that the respondent uses his personal data from the KBO for direct marketing purposes. He refers to the privacy statement on the respondent's website, which at the time of the complaint stated: “All personal data in Y's database has as its ultimate source the Crossroads Bank for Enterprises or public sources.” According to the complainant, the use of this data for direct marketing purposes would be unlawful based on Article 2, § 1, paragraph 2 of the royal decree of July 18, 2008 regarding the commercial reuse of public data from the Crossroads Bank for Enterprises. Furthermore, the complainant states that when requesting access to his data from the respondent, he does not receive details about the recipients of his data and the retrieval thereof from the KBO. He claims that the respondent refuses to fulfill their obligation to provide the information required under Article 14 of the GDPR to the data subjects.

3. On February 24, 2021, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 WOG and is forwarded to the Disputes Chamber based on Article 62, § 1 WOG.

4. On March 24, 2021, the Disputes Chamber decides, based on Article 63, 2° and 94, 1° WOG, to request an investigation from the Inspection Service.

5. On March 24, 2021, in accordance with Article 96, § 1 WOG, the request from the Disputes Chamber for an investigation is forwarded to the Inspection Service, along with the complaint and the inventory of documents.

1 Article 2. § 1. The public data from the Crossroads Bank for Enterprises may be passed on to third parties for commercial reuse in accordance with the detailed rules and conditions of this decree. Third parties may not, however, use and/or redistribute personal data for direct marketing purposes.

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6. On May 20, 2021, the investigation by the Inspection Service is completed, the report is added to the file, and the file is forwarded by the Inspector General to the Chair of the Disputes Chamber (Article 91, § 1 and § 2 WOG).

7. The report contains findings regarding the subject of the complaint and concludes that Y has violated the following articles:

- Article 5.1.a and 5.2, as well as Article 6.1 of the GDPR;
- Article 12.1, 12.2, 12.3, and 12.4 GDPR, as well as Article 15, Article 17, Article 19, Article 21, Article 24.1, and Article 25.1 of the GDPR;
- Article 12.1, Article 13.1 and 13.2, Article 14.1 and 14.2, Article 5.2, Article 24.1 as well as Article 25.1 of the GDPR.

The report also contains findings that go beyond the subject of the complaint. The Inspection Service finds, in broad terms, that Y has violated the following articles:

- Article 4.11, Article 5.1.a and Article 5.2 GDPR, Article 6.1.a, as well as Article 7.1 and 7.3 of the GDPR;
- Article 5 and Article 24.1 GDPR, as well as Article 25.1 and 25.2 of the GDPR;
- Article 30.1 and Article 30.3 of the GDPR;
- Article 38.1 and Article 39.1 of the GDPR.

8. On June 18, 2021, the Disputes Chamber decides, based on Article 96, § 2 WOG and applying Articles 63, 3° and 94, 2° WOG, to request an additional investigation from the Inspection Service.

9. On June 22, 2021, the additional investigation by the Inspection Service is completed, the additional report is added to the file, and the file is forwarded by the Inspector General to the Chair of the Disputes Chamber (Article 91, § 1 and § 2 WOG). The additional report concludes that Y has also

violated the following articles:

- Article 28.3 of the GDPR.
- Article 12.1, Article 14.2, Article 5.2, Article 24.1 as well as Article 25.1 of the GDPR.

10. On January 21, 2022, the Disputes Chamber decides, based on Article 95, § 1, 1° and Article 98 WOG, that the file is ready for substantive treatment, and the parties involved are notified by registered mail of the provisions as stated in Article 95, § 2, as well as those in Article 98 WOG. They are also informed, based on Article 99 WOG, of the deadlines for submitting their defenses.

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Regarding the findings related to the subject of the complaint, the deadline for receipt of the defendant's response was set for March 4, 2022, the deadline for the complainant's reply was set for March 25, 2022, and finally, the deadline for the defendant's rejoinder was set for April 15, 2022. The deadline for receipt of the defendant's response regarding the findings that do not directly relate to the subject of the complaint was also set for March 4, 2022.

11. On January 21, 2022, the complainant electronically accepted all communication regarding the case.

12. On January 21, 2022, the defendant also electronically accepted all communication regarding the case and indicated a desire to obtain a copy of the file (art. 95, §2, 3° WOG), which was provided to her on January 26, 2022. The defendant also indicated a desire to be heard, in accordance with Article 98 WOG.

13. On March 4, 2022, the Dispute Chamber received the defendant's response regarding the findings related to the subject of the complaint.

This response also contains the defendant's reaction to the findings made by the Inspection Service outside the scope of the complaint.

14. On March 23, 2023, the Dispute Chamber received the complainant's reply regarding the findings related to the subject of the complaint.

15. On April 15, 2023, the Dispute Chamber received the defendant's rejoinder regarding the findings related to the subject of the complaint.

16. On October 9, 2024, the parties were notified that the hearing would take place on November 4, 2024.

17. On November 4, 2024, the parties were heard by the Dispute Chamber.

18. On November 8, 2024, the minutes of the hearing were presented to the parties.

19. On November 15, 2024, the Dispute Chamber received some comments from the defendant regarding the minutes, which it decided to include in its deliberation.

20. On February 19, 2025, the Dispute Chamber informed the defendant of its intention to impose an administrative fine, as well as the amount thereof, in order to give the defendant the opportunity to defend itself before the sanction is effectively imposed. On March 13, 2025, the Dispute Chamber received the defendant's response to the intention to impose an administrative fine, as well as the amount thereof.

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II. Summary Proceedings

21. On March 6, 2025, Y filed a claim with the court by summons. She requests, primarily, a declaration that the publication of the Dispute Chamber's decision should be suspended until the moment the decision becomes final (or reformed), i.e., until the expiration of the appeal period or until the ruling of the Market Court, under penalty of a coercive fine. In a subordinate order, Y requests a declaration that the Dispute Chamber's decision should be anonymized prior to its publication, under penalty of a coercive fine. Y also requests the right to verify the anonymization of the decision and to make suggestions for (additional) anonymization. Furthermore, Y requests a declaration that the Data Protection Authority must refrain from any publication regarding the decision (via news reports or social media) to avoid the risk of Y's anonymity being breached.

22. At the public hearing on March 19, 2025, the parties were heard, the documents of the parties were submitted, the debates were closed, and the case was taken under advisement.

23. On March 26, 2025, the summary judge declared Y's claim admissible but unfounded, and ordered

her to pay the costs of the proceedings and the court fees. According to the president of the court, “no material evidence or elements were presented to support the claims and doomsday scenarios that the plaintiff [Y] puts forward in the event of publication of the ruling of the defendant [the Data Protection Authority].” Firstly, the summary judge ruled that Y did not demonstrate urgency. The alleged reputational damage is, according to the judge, based on unilateral claims, and financial damage to a commercial enterprise can, unless proven otherwise, be assumed to be recoverable. Y does not credibly demonstrate that her existence would be jeopardized by the mere publication of the decision. Furthermore, the judge points out that the publication of the decisions of the Dispute Chamber is based on the law (art. 95, § 1, 8°, 100, § 1, 16° and 108, § 3 WOG) and is therefore fully to be expected. Thus, this publication cannot constitute a sufficient ground for alleged damage. Following Y’s argument would, according to the judge, lead to a prohibition on publication for any decision until a ruling has been made on the appeal, while art. 108, § 3 WOG precisely prescribes publication to safeguard the rights of third parties in the context of the appeal procedure. Secondly, the summary judge ruled that Y did not demonstrate a sufficient appearance of right. The president of the court clarified that the decision-making authority regarding publication is exclusive and

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exclusively belongs to the Disputes Chamber. He notes that the legislator evidently assumed that publication is the rule and non-publication is the exception. By obliging the Disputes Chamber to publish or not publish preventively, the president of the court would appropriate the powers of the Disputes Chamber. Furthermore, there would be no evidence suggesting that the Disputes Chamber would act incorrectly. Finally, the president of the court reminds that the publication based on Article 108, § 3 WOG was introduced to give third parties the opportunity to appeal against a decision of the Disputes Chamber. The discussion in the present file appears, according to the president, to have a broader impact and also affects the rights and interests of third parties.

III. Reasoning

III.1. Description of the disputed processing activity by the respondent

24. The respondent, Y, is a subsidiary of the companies Z3 and W2 registered in the Netherlands. The latter has entered into a data license agreement with the also Netherlands-registered company Z7, based on which Z7 provides data to W, which then passes the data on to its subsidiaries, including the respondent. The respondent then grants (sub-)licenses of the data to its customers. In its “General Terms and Conditions (shortened)”, the respondent states that its customers can use the data for various purposes, including marketing and sales actions, enrichments, and analyses. In practice, the data is made available to customers via a portal of the respondent.

25. The categories of data provided by Z7 to W, and subsequently made available by the respondent to its customers, are described in Annex 1 of the agreement between Z7 and W. This data concerns a database of “Dutch Basic Data”, and, relevant within the scope of the present complaint, a database of “Belgian Basic Data”. According to the agreement, this latter database includes 1.3 million business addresses and monthly updates of a specific list of data components.

2 Paragraph 1 synthesis conclusions respondent

3 Document 1 synthesis conclusions respondent

4 Documents 4-5 synthesis conclusions respondent

5 Documents 6-7 synthesis conclusions respondent

6 Paragraph 4 synthesis conclusions respondent

7 Document 1 synthesis conclusions respondent

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III.1.1. Qualification of the data

26. The respondent states in its synthesis conclusions that it processes personal data only to a very limited extent. The processing that gave rise to the present complaint cannot, according to it, be qualified as processing of personal data, which means that the GDPR does not apply. According to the respondent, the email address “[...]” is not a personal data but a piece of information about a legal entity. It refers to Recital 14 of the GDPR:

“The protection provided by this regulation concerns natural persons, regardless of their nationality or residence, in relation to the processing of their personal data. This regulation does not apply to the processing of data concerning legal persons and in particular to legal persons that are established enterprises, such as the name and legal form of the legal person and the contact details of the legal person.”

(emphasis of the respondent)

According to the respondent, the email address “[...]” should be classified as a contact detail of a legal entity, and the GDPR is, in accordance with Recital 14, not applicable. In general, the respondent states that the data in its databases can only be classified as personal data in the case of sole proprietorships or the names of the directors of legal entities.

27. In this regard, the Disputes Chamber points to Article 4.1 GDPR, where the concept of personal data is defined:

“Personal data: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name...”

28. The complainant is a natural person who can be directly identified by the email address “[...]”, which means that this email address must indeed be considered as personal data according to Article 4.1 GDPR. Although it concerns an email address that the complainant uses in the context of a professional activity, it remains information about a natural person. Moreover, the Court of Justice of the European Union has ruled that the fact that information belongs to a professional context does not detract from its qualification as personal data. The Disputes Chamber also reminds that this Court already ruled in 2010 that the name of a legal person is a

8 Paragraph 52 synthesis conclusions respondent

9 CJEU, judgment of March 9, 2017, Camera di Commercio, Industria, Artigianato e Agricoltura di Lecce v. Salvatore Manni, C-398/15, ECLI:EU:C:2017:197, paragraph 34 and the case law cited therein.

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Personal data is considered to be any information from which the identity of one or more natural persons can be derived. Recital 14 serves to specify that the name of a legal entity such as Y is not personal data if it does not contain information about a natural person. The processing of the complainant's email address thus falls within the material scope of the regulation, in accordance with Article 2.1 GDPR. These personal data do not fall under the categories of personal data described in Article 2.2 GDPR to which the GDPR does not apply. Furthermore, the Dispute Chamber points out that Recital 14 GDPR cannot constitute an exception to the material scope of the GDPR in the sense of Article 2 GDPR.

III.1.2. Scope of Data Processing

29. In paragraph 54 of its synthesis conclusions, the respondent provides an overview of the email addresses included in its database. In total, the respondent claims to process 229,557 email addresses. Based on its reasoning regarding the qualification of data, the respondent states that 161,387 – or 70.3% of the 229,557 – email addresses are “impersonal.” Furthermore, the respondent claims that 21,017 email addresses are likely personal data, 44,964 email addresses are “not assessed,” and 2,184 email addresses are “unknown.” Based on its hypotheses that 50% of the “unknown” email addresses and 70% of the “not assessed” email addresses are personal data, the respondent claims that 53,584 email addresses may possibly be personal data. However, according to the respondent, the GDPR does not apply to the majority of these email addresses because most of them are the contact addresses of a company. In this regard, it states that only the data concerning sole proprietorships can be considered personal data.

30. As outlined above, the Dispute Chamber finds that the respondent incorrectly qualifies data, such as the complainant's email address, as not being personal data. Consequently, the Dispute Chamber does not follow the respondent's calculation based on its own qualification method. At least 68,165 email addresses could possibly be personal data that also fall within the scope of the GDPR, since the respondent itself states that 21,017 email addresses are likely personal data, 44,964 email addresses

are “not assessed,” and 2,184 email addresses are “unknown.” In any case, the respondent itself concluded in May 2021 that it processes personal data on a large scale. Moreover, the Inspection Service notes in its investigation report that the respondent systematically and on a large scale processes personal data. During the hearing, the respondent states that

10 CJEU, judgment of November 9, 2010, Volker und Markus Schecke GbR (C-92/09) and Hartmut Eifert (C-93/09) against Land Hessen, C-92/09 and C-93/09, ECLI:EU:C:2010:662, paragraphs 53 and 54

11 Annex 14 to the letter from the respondent to the GBA on May 5, 2021

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the number of data being processed today would not differ significantly from the number communicated in the synthesis conclusions¹².

31. Furthermore, the Dispute Chamber notes that there is uncertainty regarding the original source of the data, and in particular whether the data of the complainant was originally collected from the KBO. The complainant states in his complaint that the data was collected from the KBO. At the time of the complaint, the respondent states in her privacy statement the following: “All personal data in Y’s database has as its ultimate source the Crossroads Bank for Enterprises or public sources.” The respondent later amended this, so that her privacy statement at the time of this writing states that “the Crossroads Bank for Enterprises is not the source of the data included in our database.” The respondent states in her synthesis conclusions that the data does not originate from the KBO or other public sources, but from Z7. However, the respondent also states that she assumes that the database of Belgian business information from Z7 has been enriched with data from (among others) the KBO in order to ensure its accuracy. Z7 is said to have obtained the data from Z3, and according to the respondent, this party would have collected the data from various sources such as the KBO and Z6.¹³ During the hearing, the Dispute Chamber asks the respondent for clarification regarding the relationship between Y and the KBO. The respondent replies that she has no relationship with the KBO, but that the original source of the data in many cases would be the KBO.¹⁴ Furthermore, she states that the data does not come directly from the KBO, but that it may have been indirectly collected from the KBO by Z5. She derives this possibility from the privacy statement of Z5. The respondent states that she has no visibility on this matter.¹⁵

III.2. Legality of the processing (Article 5.1.a and 5.2, as well as Article 6.1)

32. Article 5.1.a) GDPR stipulates that personal data must be processed in a manner that is lawful, fair, and transparent with respect to the data subjects. Furthermore, Article 6.1 GDPR states that the processing of personal data is only lawful if and to the extent that it is based on one of the legal grounds laid down in Article 6.1.a) – f) GDPR. The data controller must verify prior to processing whether the conditions of one of the possible legal grounds are met. Finally, the data controller must be able to demonstrate that the processing is lawful, considering the accountability obligation that rests on him under Article 5.2 GDPR.

33. In this case, the respondent invokes the legal ground provided in Article 6.1.f) GDPR. This legal ground states that processing is lawful insofar as it is “necessary [for]

¹² Hearing Report, page 4

¹³ Paragraphs 60 and 61 synthesis conclusions respondent

¹⁴ Hearing Report, page 4

¹⁵ Hearing Report, page 6

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the safeguarding of the legitimate interests of the data controller or of a third party, except where the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data outweigh those interests, particularly when the data subject is a child.” The legal basis referred to in this provision must be interpreted restrictively according to the Court of Justice, as the processing of personal data may thereby be lawful without the data subject having given consent.

34. The Court of Justice has ruled that Article 6.1(f) of the GDPR sets out three cumulative conditions that must be met for the processing of personal data referred to therein to be lawful, namely, first, the

safeguarding of a legitimate interest of the data controller or of a third party, second, the necessity of processing personal data for the safeguarding of that legitimate interest, and, third, the condition that the interests or the fundamental rights and freedoms of the data subject do not outweigh the legitimate interest of the data controller or of a third party.

35. In the present case, the Inspection Service finds that the respondent does not comply with the obligations imposed by Articles 5.1(a), 6.1, and 5.2 of the GDPR. The Inspection Service concludes that the respondent does not sufficiently take into account the three cumulative conditions that must be met in order to invoke the legal basis of a legitimate interest. According to the Inspection Service, the respondent in particular does not meet the condition that the interests or the fundamental rights and freedoms of the data subject do not outweigh the legitimate interest of the data controller or of a third party (the “balancing test”).

36. This balancing of the conflicting rights and interests depends on the circumstances of the specific case. The data controller must take into account the interests, the fundamental rights, and the freedoms of the data subject, the impact of the processing on the data subject, and the reasonable expectations of the data subject. Recital 47 of the GDPR states that the interests and the fundamental rights of the data subject weigh more heavily than the interest of the data controller when personal data is processed in circumstances where the data subjects could not reasonably expect such processing.

16 CJEU, judgment of October 4, 2024, *Royal Dutch Lawn Tennis Association v. Data Protection Authority*, C-621/22, ECLI:EU:C:2024:857, paragraph 31 and case law cited therein

17 CJEU, judgment of July 4, 2023, *Meta v. Federal Cartel Office*, C-252/21, ECLI:EU:C:2023:537, paragraph 106 and case law cited therein; see also Guidelines 1/2024 on the processing of personal data based on Article 6(1)(f) of the GDPR, Version 1 of October 8, 2024.

18 CJEU, judgment of July 4, 2023, *Meta v. Federal Cartel Office*, C-252/21, ECLI:EU:C:2023:537, paragraph 110 and case law cited therein.

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expectation¹⁹. In any case, a careful assessment is required to determine whether there is a justified interest, as well as to determine whether a data subject can reasonably expect that processing for that purpose may take place at the time and in the context of the collection of personal data²⁰.

37. The Inspection Service refers in its report to the ruling in TK, in which the Court of Justice rules that “the reasonable expectations of the data subject that their personal data will not be processed when, in the circumstances of the case, they can reasonably expect no further processing of it”²¹ are relevant. In this context, the Inspection Service notes that the fact that personal data of data subjects is processed in the context of and accessible via the KBO or public sources does not imply that those data subjects can reasonably expect that their personal data will subsequently be systematically made available to the defendant's customers without their consent and thus further processed.

III.2.1. Balancing of Interests Regarding the Interests, Fundamental Rights, and Freedoms of the Data Subject and the Impact of Processing on the Data Subject

38. The defendant states in its synthesis conclusions that its own interests, taking into account the measures it has provided, outweigh the rights of the data subjects. It refers, just like the Inspection Service, to the ruling in TK, and more specifically to points 54 and 55 of this ruling in which the Court of Justice rules that it can be taken into account that the severity of the infringement of the fundamental rights of the data subject as a result of processing may vary depending on whether the relevant data is available in publicly accessible sources²². Furthermore, according to the defendant, it follows from that same ruling that this balancing must also take into account the nature of the relevant personal data and the processing, the specific manner of processing and access to the data, and the reasonable expectations of the data subject. The defendant asserts that the data it processes is not sensitive as it consists solely of “business data” that is always publicly available.

39. Regarding the defendant's assertion that the relevant data is also publicly available in other ways, the Disputes Chamber is of the opinion that the defendant has not sufficiently demonstrated this. The complainant's data was publicly available in this case via the KBO, but the defendant claims that the KBO was not the source for its database. It is therefore up to the defendant to demonstrate that all

personal data it holds is publicly available.

40. Furthermore, the defendant states that the number of data subjects whose personal data it would process is limited because it is a small percentage of individuals in relation to the population²³. The Disputes Chamber reminds that the defendant itself assessed in May 2021 that it processes personal data on a large scale²⁴. As outlined in paragraph 26 of this decision, it cannot be ruled out that the defendant processes at least 68,165 email addresses that may be personal data and fall within the scope of the GDPR. The ratio between the number of data subjects and the general population does not diminish the fact that the defendant processes personal data on a large scale.

41. The defendant further states that the data subjects have the opportunity to object to the processing. In this regard, the Disputes Chamber refers to Chapter III.3 of this decision, which shows that the defendant does not take sufficient measures to proactively inform data subjects that their data is being processed. In this case, the complainant was not informed by the defendant that his data would be processed, and he could not exercise his right to object until he obtained the necessary information from a customer of the defendant.

42. The defendant then states that the risk of a data breach is limited because it has taken measures to secure it, and that, if a breach were to occur, its impact would always be limited because no sensitive data is processed and because the data is always publicly accessible. As mentioned above, the Disputes Chamber finds that the defendant has not demonstrated this last point.

43. The Disputes Chamber notes that in the document "balancing of interests" that the defendant prepared in April 2021,²⁵ no attention is paid to the interests, fundamental rights, and freedoms of the data subject, the impact of the processing on the data subject, or the reasonable expectations of the data subject. Thus, it does not demonstrate that it assessed, prior to processing, to what extent data subjects might experience negative consequences. Without these essential elements, there can be no balancing of interests as required by the Court of Justice.

23 Paragraph 78, page 29 synthesis conclusions of the defendant

24 Annex 14 to the letter from the defendant to the GBA on May 5, 2021

25 Annex 9 to the letter from the defendant to the GBA on May 5, 2021

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44. The Dispute Chamber notes that the respondent demonstrates misconceptions regarding the required balancing of interests in its "balancing of interests." To begin with, section 2.2 of the "Balancing of Interests" reads as follows: "2.2 Balancing of Interests: is the processing necessary and essential to achieve one or more objectives of Y?". The question that the respondent poses to itself concerns the necessity test, and not a balancing of the opposing rights and interests involved. Furthermore, the respondent writes in the same "balancing of interests" that "Y [always carefully weighs its interests] against the interest of providing customers with the necessary business information." This is an incorrect test. The respondent must weigh its interests against the interests of the data subjects, and not against those of its customers.

In summary, the Dispute Chamber finds that the respondent does not demonstrate having conducted a balancing of interests regarding the interests, fundamental rights, and freedoms of the data subject and the impact of the processing on the data subject.

Regarding the Reasonable Expectations of the Data Subjects

45. The respondent states in its synthesis conclusions that the data subjects could reasonably have expected, based on the privacy statement of the KBO, that the respondent would make the data available to its customers. This would follow from the fact that the KBO explicitly refers in its privacy statement to the purpose of allowing the data for commercial reuse or not. However, the respondent acknowledges that it is not permitted for third parties to use personal data included in the KBO and obtained through licenses for direct marketing purposes and/or to further disseminate it. In this regard, the respondent states that it has prohibited the use of the data by its customers for direct marketing purposes in the relevant contracts.

46. The Dispute Chamber notes that the respondent, in assessing the reasonable expectations of the data subjects, refers to the privacy statement of the KBO and Article 2, § 1, paragraph 2 of the royal decree of July 18, 2008, concerning the commercial reuse of public data from the Crossroads Bank for

Enterprises. Based on this, the respondent argues that the data subjects could reasonably expect that the respondent would make the data available to its customers.

26 CJEU, judgment of July 4, 2023, *Meta v. Bundeskartellamt*, C-252/21, ECLI:EU:C:2023:537, paragraph 110 and the case law cited therein

27 Available at <https://economie.fgov.be/nl/kruispuntbank-van-1>

28 Art. 2. § 1. The public data of the Crossroads Bank for Enterprises may be transmitted to third parties for commercial reuse in accordance with the detailed rules and conditions of this decree. However, third parties may not use personal data for direct marketing purposes and/or redistribute it. Decision on the Merits 72/2025-15/48

The respondent, however, asserts that it has no relationship with the KBO and also does not hold a sub-license for the KBO data, and that the legal obligations in this regard (presumably the prohibition on the use of such data by third parties for direct marketing) do not apply to it.

47. If the processing of personal data from the KBO entails that data subjects can reasonably expect certain further processing, this only extends to the processing of that personal data by license holders and third parties as described and framed in the privacy statement of the KBO and the royal decree of July 18, 2008. The Disputes Chamber emphasizes that this excludes the possibility of third parties processing the data for direct marketing purposes. However, the respondent claims not to be a license holder of KBO data, which means that the legal obligations associated with it, according to her, do not apply. Furthermore, the respondent has not confirmed whether the data was originally collected from the KBO. Therefore, it is impossible for her to invoke the reasonable expectations that the data subjects would have regarding the processing of their data by the KBO. The Disputes Chamber thus rules that the general possibility of commercial reuse of KBO data in no way implies that the data subjects in this case could reasonably have expected that the respondent would process the data for her own purposes.

48. According to the Court of Justice, it follows from recital 47 of the GDPR that the interests and fundamental rights of the data subject weigh particularly heavily against the interests of the data controller when personal data is processed in circumstances where the data subject does not reasonably expect such processing.

49. Furthermore, account must be taken of the relationship between the data subject and the data controller. Recital 47 of the GDPR states that a legitimate interest may be present when there is a “relevant and appropriate” relationship between the data subject and the data controller, for example in situations where the data subject is a customer or is employed by the data controller. In this case, there was clearly no relevant or appropriate relationship between the complainant and the respondent and her customers. The complainant was not aware that the respondent was processing his data until he exercised his right of access with a third party that had obtained the data from the respondent.

50. From the preceding points, it follows that the respondent does not demonstrate that the data subjects, including the complainant, could reasonably have expected such processing.

29 CJEU, judgment of October 4, 2024, *Royal Dutch Lawn Tennis Association v. Data Protection Authority*, C-621/22, ECLI:EU:C:2024:857, paragraph 45 and case law cited therein. Decision on the Merits 72/2025-16/48

The reason for this is primarily that the respondent cannot concretely demonstrate from which source and at what time the data was first collected. As a result, they could not assess whether the data subject could reasonably expect that their data would be further processed at that time and in that context, nor could they perform a complete balancing test.

51. Since the three-part test for processing data based on a legitimate interest involves cumulative conditions, it is not necessary to determine whether the respondent meets the other two conditions of Article 6.1(f) GDPR. The Markets Court has already ruled in this regard that if one of the three elements of the three-part test is not met, the Disputes Chamber can correctly argue that Article 6.1(f) GDPR cannot constitute a possible legal basis.³⁰

52. Under these circumstances, it must be concluded that the respondent does not demonstrate that their interest outweighs the interests and fundamental rights of the data subjects, so that the processing cannot fall under Article 6.1(f) GDPR. Thus, the respondent has violated the obligations

imposed by Articles 5.1(a), 6.1, and 5.2 GDPR.

III.3. Transparency and Information Obligations (Article 12.1, Article 13.1 and 13.2, Article 14.1 and 14.2, Article 5.2, Article 24.1 as well as Article 25.1 of the GDPR)

53. The Inspection Service establishes that the respondent has committed a breach of Article 12.1, Article 13.1 and 13.2, Article 14.1 and 14.2, Article 5.2, Article 24.1 as well as Article 25.1 of the GDPR, as the privacy statement of the respondent is not transparent and understandable for the data subjects and contains incorrect information. Furthermore, the Inspection Service concludes that the privacy statement of Y is incomplete, as not all information that must be provided according to Articles 13 and 14 of the GDPR is effectively mentioned. In its supplementary investigation report, the Inspection Service finds that Y has breached Article 12.1, Article 14.2, Article 5.2, Article 24.1 as well as Article 25.1 of the GDPR, because the respondent clarifies in its privacy statement that it processes personal data originating from the KBO, the Appendices to the Belgian Official Gazette, and public sources such as a company's website, but does not mention that personal data is obtained from Z7.

54. Based on Articles 13 and 14 of the GDPR, every person whose personal data is processed must be informed of the elements mentioned in those articles, depending on whether the data is collected directly from them or from third parties. When the data is collected directly from the data subject, they are informed of the elements listed in Article 13.1 and 2 of the GDPR. In Article 14.1 and 2, similar elements are listed, with the exception of...

30 Court of Appeal of Brussels, 19th Chamber, Markets Court Section, judgment of June 14, 2023, NMBS v. GBA, 2022/AR/723

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understanding that Article 14 of the GDPR pertains to data that is not collected directly from the data subject, but from third parties. This information must be provided to the data subject in accordance with Article 13 or Article 14 of the GDPR in the manner specified in Article 12 of the GDPR.

55. In the present case, it is first established that the personal data processed by the respondent was not collected directly from the complainants. Consequently, only Article 14 of the GDPR is applicable, the first two paragraphs of which outline the information that must be provided to the data subjects.

56. The Dispute Chamber reminds that an essential aspect of the principle of transparency, as emphasized in Articles 12, 13, and 14 of the GDPR, is that the data subject must be able to determine in advance the scope and consequences of the processing, so as not to be surprised later about how their personal data has been used. The information must be concrete and reliable, not formulated in an abstract or ambiguous manner, and not susceptible to different interpretations. More specifically, the purposes and legal grounds for the processing of personal data must be clear.

31 1. When personal data has not been obtained from the data subject, the data controller provides the data subject with the following information:

- a) the identity and contact details of the data controller and, where applicable, of the representative of the data controller;
- b) where applicable, the contact details of the data protection officer;
- c) the purposes of the processing for which the personal data are intended, and the legal basis for the processing;
- d) the categories of personal data concerned;
- e) where applicable, the recipients or categories of recipients of the personal data;
- f) where applicable, that the data controller intends to transfer the personal data to a recipient in a third country or to an international organization; whether or not there is an adequacy decision by the Commission; or, in the case of transfers referred to in Article 46, Article 47, or Article 49, paragraph 1, second subparagraph, what the appropriate or suitable safeguards are, how a copy can be obtained, or where they can be consulted.

2. In addition to the information referred to in paragraph 1, the data controller provides the data subject with the following information to ensure fair and transparent processing in relation to the data subject:

- a) the period for which the personal data will be stored, or, if that is not possible, the criteria used to determine that period;
- b) the legitimate interests of the data controller or a third party, if the processing is based on Article 6,

paragraph 1, point f);

c) that the data subject has the right to request the data controller for access to and rectification or erasure of personal data or to restrict processing concerning them, as well as the right to object to processing and the right to data portability;

d) when processing is based on Article 6, paragraph 1, point a) or Article 9, paragraph 2, point a), that the data subject has the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;

e) that the data subject has the right to lodge a complaint with a supervisory authority;

f) the source from which the personal data originate, and, where applicable, whether they come from publicly accessible sources;

g) the existence of automated decision-making, including profiling as referred to in Article 22, paragraphs 1 and 4, and, at least in those cases, useful information about the underlying logic, as well as the significance and the expected consequences of that processing for the data subject.

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57. Pursuant to Article 14.3 GDPR, which more specifically relates to the modalities of information provision and thus constitutes an inherent supplement to the core obligations set out in Articles 14.1 and 14.2 GDPR, the aforementioned information must be communicated to the data subjects within certain timeframes. In general, the rule is that the data controller must inform the data subjects within a reasonable period, but no later than one month after obtaining their personal data, regarding the processing, depending on the specific circumstances (Article 14.3.a) GDPR). According to the guidelines on transparency under the GDPR, however, this timeframe may be shortened insofar as the collected personal data is intended for contacting the data subjects, in which case the information must be provided at the time of the first contact with the data subject (Article 14.3.b) GDPR)³². Finally, the one-month period may also be shortened if the personal data is communicated to a recipient within the meaning of Article 4.9 GDPR. In such circumstances, the data subjects must be informed no later than at the time their personal data is provided to another recipient (Article 14.3.c) GDPR).

58. In this case, the respondent asserts that the data subjects are informed about the processing activities it carries out through its privacy statement. The respondent claims that it would not be obliged to provide the information contained in Article 14 GDPR to the data subjects, as it could assume that the data subjects already possess this information based on the legal context of the processing and the chain of data processing. Firstly, the data processing would be clearly expected based on the law, which means that data subjects are deemed to be aware of the obligation to publish company data with the KBO and the further processing by the respondent. Secondly, Z5 would ensure that it notifies the data subjects, and would then impose this obligation on its customers as well. Considering Article 14.5.a) and Recital 62 of the GDPR, this implies that the respondent is not required to comply again with the transparency obligation for the processing activities it carries out. To the extent that its customers wish to carry out further processing (i.e., direct marketing), they are indeed bound by this obligation.

59. The complainant asserts that Y does not actively inform the data subjects when collecting or processing their data. As a result, it would be impossible for the data subjects to be aware of the processing of their data by the parties in the chain of data controllers that the respondent describes in its conclusions. The complainant

³² Article 29 Data Protection Working Party – Guidelines on Transparency in accordance with Regulation (EU) 2016/679 (WP260, rev. 01, April 11, 2018), adopted by the EDPB.

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disputes the argument of the respondent that it was not obliged to provide the information included in Article 14 GDPR, as it could assume that the data subjects already possessed this information. The complainant would only have been made aware of the fact that his data was being processed by the respondent when he exercised his right of access with a customer of the respondent.

60. To begin with, the Dispute Chamber points out that all successive data controllers (i.e., the respondent, Z7, Z5, and its customers) must individually inform the data subjects regarding the data processing they carry out themselves. The exception in Article 14.5.a) GDPR, according to which

Articles 14.1 to 14.4 GDPR do not apply insofar as the data subject already has the information, is not relevant. The respondent cannot evade its information obligations on the basis that Z5 has already provided certain information, as Z5 is a separate data controller. The information in at least Articles 14.1.a), b), c), and e) and 14.2.a), b), and f) could differ depending on the data controller, meaning it cannot be assumed that the data subjects already possess the information. The respondent explicitly indicates this in relation to Z7, where it adds the underlined sentence in its comments on the minutes of the hearing:

“The respondent states, as does the complainant, that Z7 is a separate data controller and not a processor. Consequently, both Z7 and the respondent have their own obligations under the transparency provisions in Article 14 GDPR.”

61. Articles 14.1 and 14.2 provide for an obligation to proactively provide information when the personal data has not been obtained from the data subject. The indirect collection of personal data from the data subjects does not imply that the provision of information to the data subjects should also occur solely in an indirect manner. On the contrary, it follows from the case law of the Court of Justice as well as from the provisions of the GDPR that it is solely the responsibility of the data controller who determines the means and purposes of the processing to inform the data subjects in a fair and transparent manner. The Dispute Chamber therefore concludes that it is primarily the responsibility of the

33 Page 3 of the respondent's letter to the GBA on November 15, 2024

34 Recital 60 — “In accordance with the principles of fair and transparent processing, the data subject must be informed of the fact that processing is taking place and of the purposes thereof. The data controller must provide the data subject with the additional information necessary to ensure fair and transparent processing in relation to the data subject, taking into account the specific circumstances and context in which the personal data is processed. [...]”; Article 14 GDPR — “1. When personal data has not been obtained from the data subject, the data controller shall provide the data subject with the following information: [...]” (the Dispute Chamber underlines). See also CJEU, October 1, 2015, C-201/14, Smaranda Bara et al. v. President of the National Health Insurance House (ECLI:EU:C:2015:638), para. 31.

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The respondent is obliged to proactively inform the data subjects about the processing of their personal data by the respondent itself, in accordance with Article 14 GDPR. Since the respondent provides the data to other recipients, it must inform the data subjects at the latest at the time when the personal data is first disclosed (Article 14.3.c) GDPR).

62. Regarding the respondent's privacy statement, the Inspection Service finds that neither in the version of March 30, 2021, nor in the version of May 5, 2021, is it mentioned that the personal data is obtained from Z7. The amended version of the respondent's privacy statement states that the KBO is not the source of the data included in the database. In the privacy statement at the time of the complaint, however, the following could be read: “All personal data in Y's database has as its ultimate source the Crossroads Bank for Enterprises or public sources.” Based on the direct contradiction, which is not explained by a factual change in the source of the data, the Dispute Chamber concludes that the respondent has provided incorrect information to the data subjects regarding Article 14.2.f) GDPR. This article obliges the data controller to communicate the source of the personal data, and, where applicable, whether it originates from public sources, to the data subjects. Furthermore, the Dispute Chamber notes that the respondent initially did not comply with Article 14.2.e) GDPR, based on which the data controller must inform the data subjects that they have the right to lodge a complaint with a supervisory authority. This information is communicated in the current version of the privacy statement.

63. The Dispute Chamber concludes that the respondent has not complied with its transparency and information obligations in accordance with Article 12.1, Article 14.1 and 14.2, Article 5.2, Article 24.1 as well as Article 25.1 of the GDPR, as it did not proactively inform the data subjects within the legally required timeframe, and because the information it provided through its privacy statement was incomplete and incorrect.

III.4. The rights of the data subject (Article 12.1, 12.2, 12.3 and 12.4 GDPR, as well as Article 15,

Article 17, Article 19, Article 21, Article 24.1 as well as Article 25.1 of the GDPR)

64. Article 12, paragraph 1 GDPR states that the data controller must take appropriate measures to ensure that the data subject receives the information related to the processing in a concise, transparent, intelligible and easily accessible form, and in clear and plain language. Article 12 of the GDPR regulates how data subjects can exercise their rights and states that the data controller must facilitate the exercise of those rights by the data subject (Article 12.2 of the GDPR), and must provide information without delay and in any event within one month of receiving the request about the measures taken in response to the request (Article 12.3 of the GDPR).

65. Article 24 GDPR requires that the data controller, taking into account the nature, scope, context and purposes of the processing, implement appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this regulation.

66. The Inspection Service finds that the respondent has violated Article 12.1, 12.2, 12.3 and 12.4 GDPR, as well as Article 15, Article 17, Article 19, Article 21, Article 24.1 as well as Article 25.1 of the GDPR, as the respondent does not provide a documented response to the Inspection Service's inquiry regarding how data subjects are concretely informed about the processing of their personal data by the respondent, and how their rights are guaranteed in accordance with Articles 12, 15, 17, 19 and 21 of the GDPR. The Inspection Service concludes that the respondent's privacy statement and the (contractual) agreements between the respondent and its clients do not, in themselves, provide answers to the rights of the complainant provided for in the aforementioned articles of the GDPR.

III.4.1. Regarding the right of access

67. The complainant attempted to exercise his right of access based on Article 15 GDPR in his email of January 15, 2021. The respondent replied on January 29, 2021, to the complainant's email, stating in its synthesis conclusions that it handled the complainant's request in accordance with its obligations.

68. Firstly, the complainant requested a complete overview of the data that the respondent had collected from him. He requested copies, backups, and other versions of the data that may or may not have been enriched. In accordance with Article 15.1 and 15.3 GDPR, the data subject has the right to this information and to a copy of the data. In its email on January 29, 2021, the respondent therefore provided a copy of the data it processes in relation to the complainant. Thus, the Dispute Chamber concludes that the respondent has not violated the GDPR in this regard.

69. Secondly, the complainant requested clarification on how, when, from which source, and from which third party(ies) the respondent had obtained the data. When the personal data is not collected from the data subject, as is the case here, Article 15.1.g) GDPR states that the data subject has the right to obtain access to all available information about the source of that data. Thus, the respondent was obliged to respond fully to these questions. In its response to the complainant's request, the respondent did not specifically address the aforementioned questions. It informs the...

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The complainant does not object to how, when, from which source, or from which third parties they obtained the data. However, they do refer to the KBO:

"The data we have registered are solely the data of your organization as registered by you with the KBO. Nevertheless, individuals under the GDPR can make a request to us to have certain data deleted. This is in contrast to the KBO."

From this, the complainant could understand that the KBO was the source of the personal data of the complainant, which is at least misleading since the respondent indicates in their synthesis conclusions that the data was not collected from the KBO. In any case, the respondent did not answer the aforementioned questions, leading the Dispute Chamber to conclude that the respondent has violated Article 15.1.g) GDPR by failing to provide all available information regarding the sources of the complainant's personal data.

70. Furthermore, the complainant asked which parties the respondent shares or has shared the data with.

71. Based on Article 15.1.c) GDPR, the data subject has the right to obtain information about the recipients or categories of recipients to whom the personal data have been or will be disclosed. In their response to the complainant's questions, the respondent refers to Article 14.1 GDPR, which states that

when personal data has not been obtained from the data subject, the data controller must provide the recipients or categories of recipients of the personal data, read in conjunction with Article 14.5 GDPR, which states that paragraphs 1 to 4 of Article 14.1 do not apply when and insofar as providing that information proves impossible or would require disproportionate effort. Based on this, the respondent asserts that they are not obliged to specify the recipients of the complainant's data, but only the categories of recipients, which they define as "organizations that value high-quality support for B2B marketing and sales actions, analyses of business target groups, and keeping carefully built business databases up to date."

72. To begin with, the Dispute Chamber points out that Article 14.5 GDPR establishes an exception within the framework of Article 14 GDPR and in no way can limit the right of access based on Article 15 GDPR. The Court of Justice has determined that the data subject must have the right to know who the specific recipients of their personal data were when that data has already been disclosed to third parties. Only when it is (still) not possible to identify these recipients is the data controller permitted to limit the disclosed information.

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Regarding the relevant categories of recipients.³⁶ During the hearing, the respondent stated that the judgment of the Court of Justice had not yet been published at the time of the complainant's request for access, and that they had sufficiently responded to the request at that time. However, this reasoning cannot be followed, as that judgment merely provides clarification regarding an obligation that directly arises from Article 15.1.c) GDPR, which was already applicable beforehand. The Dispute Chamber reminds that this interpretation of Article 15.1.c) GDPR is also evident from the guidelines on the right of access of the EDPB³⁷, as well as in the guidelines on transparency, which were approved by the Article 29 Data Protection Working Party in 2017 and revised on April 11, 2018³⁸, which was already available at the time of the request for access.

73. In light of the above, the Dispute Chamber decides that the respondent has violated Article 15.1.c) GDPR by not providing all available information about the specific recipients of the complainant's personal data.

74. Furthermore, the complainant requested information about the retention period of his personal data in his request for access. Article 15.1.d) GDPR states that he has the right to obtain access to, if possible, the period during which the personal data is expected to be stored, or, if that is not possible, the criteria used to determine that period. The respondent did not respond to this question.

75. In light of the above, the Dispute Chamber decides that the respondent has violated Article 15.1.d) GDPR by not providing all available information about the retention period to the complainant.

III.4.2. Regarding the right to erasure of personal data, the right to object, and the restriction of processing

76. The complainant also attempted to exercise his right to erasure of data based on Article 17 GDPR and his right to restriction of processing based on Article 18 in conjunction with Article 21 GDPR in his email of January 15, 2021. The respondent replied on January 29, 2021, to the complainant's email confirming that the complainant's data would be immediately deleted from their database, preventing any further dissemination, and that a deletion request would be communicated to their clients. The respondent states in their synthesis conclusions that they handled the complainant's request in accordance with their obligations.

77. Since the respondent timely deleted the complainant's personal data and informed the recipients of that data, the Dispute Chamber finds that the respondent did not violate Article 17, Article 18 in conjunction with Article 21 GDPR.

78. However, the Dispute Chamber notes that the complainant requested information about the recipients of the data in the same email. Article 19, second sentence, GDPR explicitly grants the data subject the right to be informed by the data controller about the specific recipients of the data concerning him, within the framework of the latter's obligation to inform all recipients about the exercise of the rights that this person has under Article 16, Article 17.1, and Article 18 GDPR³⁹. Since the respondent did not provide information about the specific recipients of the personal data, the Dispute Chamber decides that the respondent has violated Article 19 GDPR.

III.5. Regarding findings outside the scope of the complaint

79. To ensure effective and efficient enforcement of the complainant's rights, the Dispute Chamber decides not to address the findings made by the Inspection Service outside the scope of the complaint in this decision. However, this does not affect the obligation of the respondent to take measures to fully comply with all obligations arising from the GDPR.

IV. On corrective measures and penalties

80. According to the wording of Article 100.1 of the WOG, the Dispute Chamber has the authority to:

- 1° dismiss a complaint;
- 2° order the discontinuation of prosecution;
- 3° order a suspension of the decision;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise his rights;
- 7° order that the data subject be informed of the security issue;

39 Court of Justice, January 12, 2023, C-154/21, RW v. Österreichische Post (ECLI:EU:C:2023:3), paragraph 41.

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- 8° to order that the processing be temporarily or permanently frozen, limited, or prohibited;
- 9° to order that the processing be brought into compliance;
- 10° to order the rectification, limitation, or deletion of data and the notification thereof to the recipients of the data;
- 11° to order the withdrawal of the recognition of certification bodies;
- 12° to impose fines;
- 13° to impose administrative monetary penalties;
- 14° to order the suspension of cross-border data flows to another State or an international institution;
- 15° to transfer the file to the Public Prosecutor's Office in Brussels, which shall inform it of the action taken on the file;
- 16° to decide on a case-by-case basis to make its decisions public on the website of the Data Protection Authority.

IV.1. Corrective Measures

IV.1.1. Regarding the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, as the respondent does not demonstrate that its interest outweighs the interests and fundamental rights of the data subjects, so that the processing cannot fall under Article 6.1.f) GDPR, and is unlawful due to a lack of a valid legal basis:

81. The Dispute Chamber decides, firstly, to order the respondent under 58.2.g) GDPR as well as Article 100, § 1, 10° of the WOG, to delete personal data for which it cannot demonstrate that it has a valid legal basis for processing in accordance with 5.1.a), 6.1, and 5.2 GDPR. According to Art. 108, § 1, third paragraph WOG, this order is not enforceable immediately.

82. Furthermore, the Dispute Chamber decides to order the respondent under 58.2.g) GDPR as well as Article 100, § 1, 10° of the WOG to inform all recipients of the aforementioned personal data of the preceding order as well as the present decision, and to emphasize that the cited legal basis for the processing does not correspond with the GDPR.

83. These orders are necessary to stop the unlawful processing of personal data.

IV.1.2. Regarding the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, as the respondent did not proactively inform the data subjects within the legally required timeframe, and as the information it provided via its privacy statement was incomplete and incorrect:

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84. The Dispute Chamber decides to order the respondent under 58.2.d) GDPR as well as Article 100, § 1, 9° of the WOG to bring future processing of personal data into compliance with the provisions of the GDPR, by proactively informing the data subjects within the legally required timeframe in accordance with Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR.

85. This order is necessary to bring the respondent into compliance with the information obligations.

IV.1.3. Regarding the infringement of Articles 15.1.c), 15.1.d) and 15.1.g) GDPR, as the respondent did not provide all available information about the specific recipients, the sources, and the retention period of the personal data to the complainant in response to his request for access; and regarding the infringement of Article 19 GDPR

86. The Dispute Chamber decides to order the respondent under 58.2.c) GDPR as well as Article 100, § 1, 6° WOG to comply with the complainant's requests to exercise his rights within a period of 30 days after notification of this decision:

- i. by providing all available information about the specific recipients of the personal data to the complainant in accordance with Article 15.1.c) as well as Article 19, second sentence, GDPR;
- ii. by providing all available information about the retention period of his personal data to the complainant in accordance with Article 15.1.d) GDPR;
- iii. by providing all available information about the sources of the personal data to the complainant in accordance with Article 15.1.g) GDPR.

87. Y states in her response to the sanction form that she will make every effort to comply with the complainant's requests to exercise his rights, but that she has already deleted the data – following the complainant's request – in February 2021. The Dispute Chamber finds that this order is nevertheless necessary to safeguard the rights of the complainant. The respondent must therefore comply with the complainant's requests by providing all available information.

IV.2. Administrative Monetary Penalties

88. In addition to the corrective measures, the Dispute Chamber decides to impose three administrative monetary penalties with a view to a robust enforcement of the rules of Decision on the Merits 72/2025-27/48

this regulation. As is clearly evident from Recital 148 of the GDPR, the GDPR indeed emphasizes that for every infringement — including a first determination of an infringement — penalties, including administrative fines, are imposed in addition to or instead of appropriate measures.

89. The Dispute Chamber also points out that it is its sovereign responsibility as an independent administrative authority — taking into account the relevant articles of the GDPR and the WOG — to determine the appropriate corrective measures and sanctions. This follows from Article 83 of the GDPR itself, but the Markets Court has also emphasized in its case law the existence of a broad discretionary power of the Dispute Chamber regarding the choice of sanction and its extent, as highlighted in its judgments of July 7, 2021, and September 6, 2023.

90. The fact that this concerns a first determination of an infringement of the GDPR committed by the respondent does not in any way detract from the Dispute Chamber's ability to impose an administrative fine. The Dispute Chamber imposes the administrative fine in application of Article 58.2.i) GDPR. The instrument of administrative fine is by no means intended to terminate infringements; for that purpose, the GDPR and the WOG provide for a number of corrective measures, including the orders mentioned in Article 100, § 1, 8° and 9° WOG.

91. Article 83.3 GDPR prescribes the factors that must be taken into account for each specific case when deciding whether to impose an administrative fine and regarding its amount. The Dispute Chamber particularly considers the severity of the infringements, the duration of the infringements, and the necessary deterrent effect to prevent future infringements. To avoid the repetition of the assessment of each factor, the Dispute Chamber refers to the assessment below, in which the imposition of an administrative fine and its amount are evaluated together.

92. In any case, to impose an effective, proportionate, and deterrent fine, supervisory authorities are expected to impose administrative fines.

40 Recital 148 GDPR states: “In order to ensure a stronger enforcement of the rules of this regulation, penalties, including administrative fines, should be imposed for every infringement of the regulation, in addition to or instead of appropriate measures imposed by supervisory authorities under this regulation. In the case of a minor infringement or if the expected fine would impose an excessive burden on a natural person, a reprimand may be chosen instead of a fine. However, account must be taken of the nature, seriousness, and duration of the infringement, the intentional character of the infringement, damage-limiting measures, the degree of responsibility, or previous relevant

infringements, the manner in which the infringement became known to the supervisory authority, compliance with measures taken against the controller or processor, adherence to a code of conduct, and all other aggravating or mitigating factors. The imposition of penalties, including administrative fines, must be subject to appropriate procedural safeguards in accordance with the general principles of Union law and the Charter, including an effective remedy and a fair trial.”

41 Court of Appeal Brussels, Markets Court section, 19th Chamber A, Chamber for Market Affairs, 2021/AR/320, pp. 37-47; Court of Appeal Brussels, Markets Court section, 19th Chamber A, Chamber for Market Affairs, 2020/AR/1160, p. 34.

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to adjust and thereby remain within the margin provided in the EDPB Guidelines 04/2022 for the calculation of administrative fines under the GDPR (Version 2.1, Adopted on May 24, 2023). This may lead to significant increases or decreases in the fine, depending on the circumstances of the case. The application of these Guidelines is necessary to ensure the coherence of the application of the GDPR. In accordance with the EDPB Guidelines, administrative fines for violations of the GDPR are calculated based on a method consisting of five steps. These five steps will be systematically addressed in the following paragraphs. The Dispute Chamber reminds that it is not obliged to examine criteria that are not applicable.

IV.2.1. Cumulative violations and the application of Article 83.3 GDPR

93. The Dispute Chamber decides to impose fines for the following violations:

- i. Violation of Articles 5.1.a), 6.1, and 5.2 GDPR, as the respondent does not demonstrate that its interest outweighs the interests and fundamental rights of the data subjects, so that the processing cannot fall under Article 6.1.f) GDPR, and is unlawful due to a lack of a valid legal basis;
- ii. Violation of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, as the respondent did not proactively inform the data subjects within the legally required timeframe, and as the information provided through its privacy statement was incomplete and incorrect;
- iii. Violation of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, as the respondent did not provide all available information about the specific recipients, the sources, and the retention period of the personal data to the complainant in response to his request for access.

94. As a first step, the Dispute Chamber establishes that there is a single infringing behavior. The processing of personal data without a valid legal basis, without proactively informing the data subjects, and without fully addressing the complainant's requests for access, constitutes a series of processing activities that are carried out by a single will and that are contextually, spatially, and temporally interconnected. They must be considered as “related” and as a single behavior.

95. However, the Dispute Chamber finds that this behavior resulted in three different violations, and that these violations can be cumulatively attributed when calculating the fines. The provisions that were violated pursue independent objectives (the principle of lawfulness, the duty to inform, and the right of data subjects to obtain access to the processing of their personal data), whereby one provision is not excluded or encompassed by the applicability of the other, which justifies the imposition of separate fines. The Dispute Chamber refers, for example, to the Binding Decision 1/2021 of the EDPB: “Regarding the meaning of Article 83(3) GDPR, the Committee [EDPB] notes that taking into account the positions of the relevant supervisory authorities in the case of multiple violations, multiple amounts may be established. However, the total fine must not exceed a maximum amount that, in abstracto, is prescribed by the GDPR.”

96. Furthermore, Article 83.3 GDPR stipulates that if a data controller intentionally or negligently violates multiple provisions of this regulation concerning the same or related processing activities, the total amount of the fine shall not exceed the maximum amount allowed for the most serious violation.

97. In summary, the Dispute Chamber concludes in this case that it must impose three separate fines, and that the total fine cannot exceed the maximum amount for the most serious violation.

IV.2.2. Starting amount for the calculation

98. The calculation of administrative fines begins with a harmonized starting amount based on the EDPB Guidelines 04/2022. This takes into account the classification of violations according to their

nature under Article 83, paragraphs 4 to 6, GDPR, the severity of the violation, and the turnover of the company.

Classification of violations according to their nature under Article 83, paragraphs 4 to 6, GDPR

99. The GDPR distinguishes between two categories of violations: the violations that are punishable under Article 83.4 GDPR on the one hand and the violations that are punishable under Articles 83.5 and 83.6 GDPR on the other hand. The first category of violations carries a maximum fine of 10 million EUR or 2% of the total worldwide annual turnover.

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previous financial year, if this figure is higher. The second category may lead to a fine of up to 20 million EUR or 4% of the total global annual turnover in the previous financial year, if this figure is higher.

i.

For the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, the maximum administrative fine in accordance with Article 83.5.a) GDPR is up to 20,000,000 EUR or up to 4% of the total global annual turnover in the previous financial year, if this figure is higher;

ii.

For the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, the maximum administrative fine in accordance with Article 83.5.b) GDPR is up to 20,000,000 EUR or up to 4% of the total global annual turnover in the previous financial year, if this figure is higher;

iii.

For the infringement of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, the maximum administrative fine in accordance with Article 83.5.b) GDPR is up to 20,000,000 EUR or up to 4% of the total global annual turnover in the previous financial year, if this figure is higher.

100. Since the higher fines apply, in accordance with Articles 83.5.a) and 83.5.b) of the GDPR, the Dispute Chamber may impose an administrative fine of up to 20,000,000 EUR or up to 4% of the total global annual turnover in the previous financial year, if this is higher, for each infringement.

IV.2.3. Severity of the infringements in each individual case

101. Regarding the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, since the respondent does not demonstrate that its interest outweighs the interests and fundamental rights of the data subjects, so that the processing cannot fall under Article 6.1.f) GDPR, and is unlawful due to a lack of a valid legal basis:

i.

Article 83.2.a) GDPR – The nature, seriousness, and duration of the infringement: Regarding the nature of the infringement, the Dispute Chamber notes that the principle of lawfulness (Article 5.1.a) and 6 GDPR) is a fundamental principle of the protection guaranteed by the GDPR. This principle is also enshrined in Article 8.2 of the Charter of Fundamental Rights of the European Union.

Infringements of this core principle therefore constitute serious violations. With respect to the seriousness of the infringement, the Dispute Chamber notes that the contested processing took place in the context of the respondent's business activities. The latter specializes in making data available for a fee. Furthermore, the Dispute Chamber notes that the processing is extensive, and that the respondent concluded in May 2021 that it processes personal data on a large scale. For these reasons, the infringement must be assessed as more serious. Thirdly, regarding the duration of the infringement, the Dispute Chamber notes that W, the parent company of the respondent, entered into a data license agreement with Z7 on November 21, 2017. The Dispute Chamber understands that the respondent has since made the relevant data available to its customers, leading the Dispute Chamber to conclude that the data breach has already lasted several years.

ii.

Article 83.2.b) GDPR – The intentional or negligent nature of the infringement: In this case, according to the Dispute Chamber, there is no – apparent – intent on the part of the respondent to deliberately violate Articles 5.1.a), 6.1, and 5.2 GDPR by improperly relying on Article 6.1.f) GDPR as a legal basis, but at least a case of serious negligence, which meets the requirements of the case law of the Court of Justice of the EU. The Dispute Chamber notes that the processing may stem from a misinterpretation by the respondent of Articles 2 and 4.1 GDPR, and Recital 14 GDPR, leading it to not consider the

relevant personal data as personal data. Although the respondent is responsible for compliance with the GDPR, the Dispute Chamber takes into account that the infringement appears to be unintentional as a result. Nevertheless, the Dispute Chamber notes that the respondent processed this personal data in the context of its professional activities, where the processing of personal data constitutes the core activity. The Dispute Chamber therefore believes that the respondent should have been aware that the contested processing involved personal data, and that it was an unlawful processing resulting from serious negligence. Consequently, the Dispute Chamber gives more weight to this factor.

iii.

Article 83.2.g) GDPR – The categories of personal data to which the infringement relates: The contested processing concerns the email address that the complainant uses in the context of a professional activity, and by which he can be directly identified. Although such personal data is *prima facie* not of a sensitive or special nature, the Dispute Chamber judges that they nonetheless belong to categories of personal data that data subjects would generally not reasonably expect to be indirectly collected by and subsequently processed by third parties. This category is assessed as neutral.

47 Annex 14 to the letter from the respondent to the GBA on May 5, 2021

48 See Judgment C-807/21, *Deutsche Wohnen*, ECLI:EU:C:2023:950, para. 78.

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102. Regarding the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, due to the respondent's failure to proactively inform the data subjects within the legally required timeframe, and because the information provided through its privacy statement was incomplete and incorrect:

i.

Article 83.2.a) GDPR – The nature, seriousness, and duration of the infringement: Concerning the nature of the infringement, the Dispute Chamber notes that the transparency and information obligations are fundamental principles of the GDPR. They indeed enable the data subjects to exercise the other rights granted by the GDPR, such as the right to object and the right to erasure. Infringements of these core principles therefore constitute serious violations, which can be punished with the highest administrative fines provided for by the GDPR. Regarding the seriousness and duration of the infringement, the Dispute Chamber refers to the above findings that the respondent made financial gains over a period of several years by processing personal data without a valid legal basis. The fact that it did so without proactively informing the data subjects about the processing is, in this context, a serious infringement. When data subjects are not informed about the processing of their personal data, they are deprived of the opportunity to exercise their rights, creating an imbalance in the relationship with the data controller and recipients of the data. This opens the door to abuse and unlawful processing.

ii.

Article 83.2.b) GDPR – The intentional or negligent nature of the infringement: In this case, according to the Dispute Chamber, there is no – apparent – intent on the part of the respondent to deliberately infringe Articles 12.1, 14.1, 14.2, 5.2, 24.1, and Article 25.1 GDPR, but there is serious negligence, which meets the requirements of the case law of the Court of Justice of the EU. The respondent believed that it was not obliged to proactively provide information to the data subjects because these data subjects would have already been informed by a separate data controller about the processing of the data. However, the respondent had its own, separate obligation to provide information since it itself was a data controller processing the data for its own purposes and with its own means. Additionally, the respondent informed the data subjects in its privacy statement as follows: “All personal data in Y’s database has as its ultimate source the Crossroads Bank for Enterprises or public sources.” Since it appears that the true source of the personal data is Z7, the Dispute Chamber can only conclude that there is serious negligence in correctly informing the data subjects.

iii.

Article 83.2.g) GDPR – The categories of personal data to which the infringement relates: See above.

103. Regarding the infringement of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, as the respondent did not provide all available information about the specific recipients, the sources, and the retention period

of the personal data to the complainant in response to his request for access:

i.

Article 83.2.a) GDPR – The nature, seriousness, and duration of the infringement: Regarding the nature of the infringement, the Dispute Chamber notes that the right of access is the gateway to the exercise of other rights provided for by the GDPR, such as the right to object to the processing of personal data (Article 21 GDPR) and the so-called right to be forgotten (Article 17 GDPR). It is therefore of utmost importance that data subjects exercising their right of access actually obtain access to all personal data concerning them and collected by the data controller, as well as receive concise, transparent, and understandable information about the circumstances under which their personal data is processed. By failing to provide complete and sufficiently detailed information to the complainant, the data controller deprives him of the ability to exercise an appropriate degree of control over his own personal data. Regarding the seriousness and duration of the infringement, the Dispute Chamber refers to the above findings that the respondent made financial gains over a period of several years by processing personal data without a valid legal basis and without proactively informing the data subjects. The fact that it refused to respect the complainant's right of access constitutes a serious infringement in this context.

ii.

Article 83.2.b) GDPR – The intentional or negligent nature of the infringement: In this case, according to the Dispute Chamber, there is no – apparent – intent on the part of the respondent to deliberately infringe Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, but there is serious negligence, which meets the requirements of the case law of the Court of Justice of the EU. The complainant explicitly requested the information in the aforementioned articles, and Article 15.1 GDPR unmistakably establishes the obligation to provide this information. By only mentioning the categories of recipients, although the respondent had the...

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the specific identity of these recipients must be available; by not disclosing the actual sources; and by not providing information regarding the retention period, the Dispute Chamber finds it sufficiently proven that the infringement of Article 15 GDPR was committed due to serious negligence.

iii.

Article 83.2.g) GDPR – the categories of personal data to which the infringement relates: See above.

104. Based on an assessment of the above factors, the severity of each infringement as a whole is determined:

i.

Regarding the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, the Dispute Chamber considers that it concerns a serious, extensive, and prolonged infringement of a fundamental principle of the GDPR in the context of the core activity of the respondent, which was committed with serious negligence. The Dispute Chamber concludes that it constitutes an infringement of average severity. In accordance with paragraph 60 of the EDPB Guidelines, the Dispute Chamber shall set the starting amount for further calculation at a point between 10 and 20% of the applicable statutory maximum amount. The Dispute Chamber will set the starting amount for further calculation at 15% of the statutory maximum amount as provided in Article 83.5 GDPR;

ii.

Regarding the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, the Dispute Chamber considers that it concerns a serious, extensive, and prolonged infringement of a fundamental principle of the GDPR in the context of the core activity of the respondent, which was committed with serious negligence, leading the Dispute Chamber to conclude that it constitutes an infringement of average severity. In accordance with paragraph 60 of the EDPB Guidelines, the Dispute Chamber shall set the starting amount for further calculation at a point between 10 and 20% of the applicable statutory maximum amount. The Dispute Chamber will set the starting amount for further calculation at 15% of the statutory maximum amount as provided in Article 83.5 GDPR;

iii.

Regarding the infringement of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, the Dispute Chamber considers that it concerns a serious infringement of a fundamental principle of the GDPR in the context

of the core activity of the respondent, which was committed with serious negligence, leading the Dispute Chamber to conclude that it constitutes an infringement of average severity. In accordance with paragraph 60 of the EDPB Guidelines, the Dispute Chamber shall set the starting amount for further calculation at a point between 10 and 20% of the applicable statutory maximum amount. The Dispute Chamber will set the starting amount for further calculation at 15% of the statutory maximum amount as provided in Article 83.5 GDPR.

105. In its response to the sanction form, the respondent states that the sanction form indicates that there is no intent or manifest gross negligence. It asserts that it always acted in good faith, took measures, and implemented a policy to comply with its obligations under the GDPR and that it cooperated with both the complainant and the Data Protection Authority. However, this would not translate into the calculation of the fines. The Dispute Chamber notes that the respondent does not contest the finding that the three infringements were of "average severity," which led to the starting amount being set at 15% of the statutory maximum amount. Furthermore, no material evidence or elements are presented on the basis of which the finding of "average severity" should be adjusted.

IV.2.4. The turnover of the respondent as a relevant element to consider for the imposition of an effective, deterrent, and proportionate fine under Article 83.1 GDPR

106. In accordance with Article 83.1 GDPR, the Dispute Chamber must ensure that the administrative fines imposed are effective, proportionate, and deterrent. Thus, it also reflects a distinction in the starting amounts based on the size of the enterprise.

107. Articles 83.4 to 83.6 GDPR stipulate that the total worldwide annual turnover of the preceding financial year must be used for the calculation of the administrative fine. In this regard, the term "preceding" must be interpreted in accordance with the case law of the Court of Justice in competition law, so that the relevant event for the calculation is the fine decision of the supervisory authority, and not the time of the sanctioned infringement.

108. The Dispute Chamber specifies in this regard that at the time of sending the sanction form dated February 19, 2025, it did not yet have the turnover figures for the year.

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2024 and therefore had to take into account the revenue figures of 2023. Since the revenue figures were not included in the respondent's financial statements for 2023, the Dispute Chamber had to use the gross margin of 2023 as recorded in the financial statements as an alternative. This gross margin amounts to EUR 52,404. The Dispute Chamber invited the respondent to submit the revenue figures for the financial year 2023 to the Dispute Chamber.

109. In her response to the sanction form, Y stated that she cannot assess her future financial capacity. Furthermore, she does not provide any additional revenue figures. The Dispute Chamber must therefore rely on the available data.

110. Based on the above, the Dispute Chamber establishes that 4% of the total global annual revenue in the previous financial year amounts to EUR 2,096.16, which is lower than EUR 20,000,000. Thus, the maximum administrative fine according to Article 83.5 GDPR is up to EUR 20,000,000. In concrete terms, this leads to the following starting amounts:

- i. Regarding the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, the Dispute Chamber set the starting amount for further calculation at 15% of the legal maximum amount specified in Article 83.5 GDPR. This results in a starting amount of EUR 3,000,000;
- ii. Regarding the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, the Dispute Chamber set the starting amount for further calculation at 15% of the legal maximum amount specified in Article 83.5 GDPR. This results in a starting amount of EUR 3,000,000;
- iii. Regarding the infringement of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, the Dispute Chamber set the starting amount for further calculation at 15% of the legal maximum amount specified in Article 83.5 GDPR. This results in a starting amount of EUR 3,000,000;

111. In accordance with the EDPB Guidelines⁵⁵, the Dispute Chamber may consider continuing the calculation for companies with an annual revenue of less than EUR 2 million based on an amount between 0.2% and 0.4% of the established starting amount. The Dispute Chamber decides that this is appropriate in this case, leading to the following adjusted amounts:

55 EDPB – Guidelines 04/2022 for the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), paragraph 65

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- i. Regarding the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, the starting amount of EUR 3,000,000 is reduced to EUR 6,000 (0.2% of the starting amount);
- ii. Regarding the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, the starting amount of EUR 3,000,000 is reduced to EUR 6,000 (0.2% of the starting amount);
- iii. Regarding the infringement of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, the starting amount of EUR 3,000,000 is reduced to EUR 6,000 (0.2% of the starting amount).

IV.2.5. Aggravating and Mitigating Circumstances

112. According to the GDPR, the supervisory authority, after assessing the nature, seriousness, and duration of the infringement, the intentional or negligent nature of the infringement, and the categories of personal data affected by the infringement (see above), must take into account other aggravating and mitigating factors as mentioned in Article 83.2 GDPR⁵⁶.

i. Regarding the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, since the respondent does not demonstrate that her interest outweighs the interests and fundamental rights of the data subjects, so that the processing cannot fall under Article 6.1.f) GDPR, and is unlawful due to a lack of a valid legal basis:

- a. 83.2.c) GDPR – the measures taken by the data controller or processor to mitigate the damage suffered by data subjects: Not applicable.
- b. 83.2.d) GDPR – the extent to which the data controller or processor is responsible considering the technical and organizational measures he has implemented in accordance with Articles 25 and 32: Not applicable.
- c. 83.2.e) GDPR – previous relevant infringements by the data controller or processor: The Dispute Chamber takes into account that the respondent has not been found guilty of previous violations of the GDPR. This factor can therefore be considered neutral.
- d. 83.2.f) GDPR – the extent to which there has been cooperation with the supervisory authority to remedy the infringement and the potential negative

56 EDPB – Guidelines 04/2022 for the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), paragraph 70

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to limit the consequences thereof: The Dispute Chamber notes that the respondent has adopted a cooperative stance towards it. In accordance with the guidelines of the EDPB, the Dispute Chamber considers the ordinary obligation to cooperate as neutral given the general obligation to assist under Article 31 GDPR.

- e. 83.2.h) GDPR – the manner in which the supervisory authority became aware of the infringement, in particular whether, and if so to what extent, the controller or the processor reported the infringement: Not applicable.
- f. 83.2.i) GDPR – compliance with the measures referred to in Article 58(2), insofar as they were previously taken regarding the controller or processor in question concerning the same matter: Not applicable.
- g. 83.2.j) GDPR – adherence to approved codes of conduct in accordance with Article 40 or to approved certification mechanisms in accordance with Article 42: Not applicable.
- h. 83.2.k) GDPR – any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial gains made, or losses avoided, that arise directly or indirectly from the infringement: The respondent made financial gains over a period of several years by processing personal data without a valid legal basis, which is assessed as an aggravating circumstance.
- ii. Regarding the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, due to the respondent not proactively informing the data subjects within the legally required timeframe, and because the information provided through its privacy statement was incomplete and incorrect:
 - a. 83.2.c) GDPR – the measures taken by the controller or processor to mitigate the damage suffered by the data subjects: The Dispute Chamber notes that the respondent has amended its privacy

statement. However, it has not received any indication that the respondent also proactively provides information to the data subjects. This factor is considered neutral.

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- b. 83.2.d) GDPR – the extent to which the controller or processor is responsible given the technical and organizational measures they have implemented in accordance with Articles 25 and 32: Not applicable.
- c. 83.2.e) GDPR – previous relevant infringements by the controller or processor: See above.
- d. 83.2.f) GDPR – the extent to which there has been cooperation with the supervisory authority to remedy the infringement and limit its possible negative consequences: See above.
- e. 83.2.h) GDPR – the manner in which the supervisory authority became aware of the infringement, in particular whether, and if so to what extent, the controller or processor reported the infringement: Not applicable.
- f. 83.2.i) GDPR – compliance with the measures referred to in Article 58(2), insofar as they were previously taken regarding the controller or processor in question concerning the same matter: Not applicable.
- g. 83.2.j) GDPR – adherence to approved codes of conduct in accordance with Article 40 or to approved certification mechanisms in accordance with Article 42: Not applicable.
- h. 83.2.k) GDPR – any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial gains made, or losses avoided, that arise directly or indirectly from the infringement: Not applicable regarding this infringement.
- iii. Regarding the infringement of Article 15.1.c), 15.1.d) and 15.1.g) GDPR, as the respondent did not provide all available information about the specific recipients, the sources, and the retention period of the personal data to the complainant in response to their request for access:
 - a. 83.2.c) GDPR – the measures taken by the controller or processor to mitigate the damage suffered by the data subjects: Not applicable.

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- b. 83.2.d) GDPR – the extent to which the controller or the processor is responsible considering the technical and organizational measures they have implemented in accordance with Articles 25 and 32: Not applicable.
- c. 83.2.e) GDPR – previous relevant infringements by the controller or the processor: See above.
- d. 83.2.f) GDPR – the extent to which there has been cooperation with the supervisory authority to remedy the infringement and mitigate its possible negative consequences: See above.
- e. 83.2.h) GDPR – the manner in which the supervisory authority became aware of the infringement, in particular whether, and if so to what extent, the controller or the processor reported the infringement: Not applicable.
- f. 83.2.i) GDPR – compliance with the measures referred to in Article 58(2), insofar as they have previously been taken against the controller or the processor in question regarding the same matter: Not applicable.
- g. 83.2.j) GDPR – adherence to approved codes of conduct in accordance with Article 40 or approved certification mechanisms in accordance with Article 42: Not applicable.
- h. 83.2.k) GDPR – any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial gains made or losses avoided, whether or not directly resulting from the infringement: Not applicable regarding this infringement.

113. The Dispute Chamber finds that the respondent made financial gains over a period of several years by processing personal data without a valid legal basis, which is assessed as an aggravating circumstance concerning the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR. Consequently, it decides to increase the fine amount for this infringement by EUR 2,000 to EUR 8,000.

114. In its response to the sanction form, Y states that the fact that the data involved primarily relates to businesses should be taken into account when considering the pursuit of financial gain as an aggravating circumstance. The Dispute Chamber rules that the mere fact that personal data also concerns businesses does not detract from the fact that making financial gains is an aggravating circumstance in the unlawful processing of personal data.

IV.2.6. Alignment with Maximum Amounts

115. The maximum amounts for the fines in this case have already been calculated above. For the record:

- i. For the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR, the maximum administrative fine in accordance with Article 83.5.a) GDPR is up to EUR 20,000,000 or up to 4% of the total worldwide annual turnover in the previous financial year, whichever is higher;
- ii. For the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR, the maximum administrative fine in accordance with Article 83.5.b) GDPR is up to EUR 20,000,000 or up to 4% of the total worldwide annual turnover in the previous financial year, whichever is higher;
- iii. For the infringement of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR, the maximum administrative fine in accordance with Article 83.5.b) GDPR is up to EUR 20,000,000 or up to 4% of the total worldwide annual turnover in the previous financial year, whichever is higher.

116. At the time of sending the sanction form dated February 19, 2025, the Dispute Chamber does not yet have the turnover figures for the year 2024 and therefore takes into account the turnover figures from 2023. Since the turnover figures were not included in the respondent's financial statements for 2023, the Dispute Chamber must use the gross margin of 2023 as recorded in the financial statements as an alternative. This gross margin amounts to EUR 52,404. The respondent is invited to submit the turnover figures for the financial year 2023 to the Dispute Chamber.

117. Based on the above, the Dispute Chamber states that 4% of the total worldwide annual turnover in the previous financial year amounts to EUR 2,096.16, which is lower than EUR 20,000,000. Thus, the maximum administrative fine in accordance with Article 83.5.b) GDPR is up to EUR 20,000,000 for each of the three established infringements.

118. In accordance with Article 83.3 GDPR, the total fine may not exceed that for the most serious infringement. In this case, the Dispute Chamber intends to impose the following fines:

- i. Regarding the infringement of Articles 5.1.a), 6.1, and 5.2 GDPR: EUR 8,000;
- ii. Regarding the infringement of Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR: EUR 6,000;

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- iii. Regarding the infringement of Articles 15.1.c), 15.1.d), and 15.1.g) GDPR: 6,000 EUR.

119. Thus, the total fine amounts to 20,000 EUR, which is well below the maximum fine of 20,000,000 EUR.

IV.2.7. Effectiveness, proportionality, and deterrent effect

Effectiveness

120. Recital 148 GDPR emphasizes that administrative fines must be imposed “[w]ith a view to a more effective enforcement of the rules of this regulation.” The imposed fine must therefore be high enough to achieve this objective.

121. The Dispute Chamber considers that the fines of 8,000, 6,000, and 6,000 EUR are suitable to effectively enforce the fundamental principles that were infringed.

Proportionality

122. The principle of proportionality implies that the amounts of the fines must not be disproportionate to the objectives pursued and that the imposed fine must be proportionate to the infringement, viewed in its entirety, taking into account, in particular, its severity.

123. In this case, the three relevant infringements were assessed as of moderate severity. According to paragraph 60 of the EDPB Guidelines, in cases of moderate severity, the Dispute Chamber must set the starting amount for further calculation at a point between 10% and 20% of the applicable statutory maximum amount. The Dispute Chamber notes that the financial gain that the defendant made from processing personal data without a legal basis, proactive information provision, and compliance with the right of access must be effectively deterred. Therefore, the Dispute Chamber set the starting amounts for further calculation at 15% of the statutory maximum amount specified in Article 83.5 GDPR.

124. However, the Dispute Chamber also takes into account the defendant's turnover, which is why it only used 0.2% of the starting amounts for the calculation of the fines (see above). Furthermore, the Dispute Chamber invited the defendant to provide information if it believes that the fines in question

would irreparably jeopardize its viability. However, the defendant did not provide any substantial evidence that could confirm this.

57 EDPB – Guidelines 04/2022 on the calculation of administrative fines pursuant to the GDPR (v2.1, May 24, 2023), paragraph 60

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Deterrent effect

125. In imposing a fine, the Dispute Chamber considers both specific and general deterrence. A fine is deterrent when it prevents an individual from violating the objectives and regulations enshrined in EU law.

126. The deterrent nature of the fine must have two dimensions. It must prevent the person to whom the fine is imposed from repeating the infringement in the future, but it must also deter other individuals from repeating the infringing behavior of the first person.

127. Various factors determine the deterrent effect of a fine: the nature and amount of the fine and the likelihood that the fine will be imposed are decisive in this respect. A fine must be high enough to have a significant financial impact on the business committing the infringement, while the fine must be proportionate to the severity of the infringement. In other words, the criterion of deterrence overlaps with that of effectiveness.

128. In the present case, the total amount of the fine is reduced to 20,000 EUR. However, this amount remains sufficiently deterrent to prevent the defendant from repeating its infringement of the GDPR rules. Moreover, it is also intended to deter other businesses from committing similar infringements. This fine, which is proportionate to the severity of the infringement and takes into account the defendant's turnover, is intended to have both a specific and a general deterrent effect.

Response from Y:

129. Y was given the opportunity to respond to the proposed fines. It did so on March 13, 2025.

130. To begin with, Y states that there are special circumstances. Firstly, the infringements, according to her, take very limited account of the context in which she operates. She specifically states that it appears that all data is categorized under the same label of personal data, while a large part of the data processed by Y should not be classified as such. In this way, a heavier infringement would be assumed than what is actually present. The Dispute Chamber finds that this concern is not pertinent as it has indeed conducted an analysis of the nature of the data that Y processes (see section III.1.1. Qualification of the data). Furthermore, Y argues that the fact that the data concerns businesses should be reflected in the calculation of the fine. The Dispute Chamber

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judges that the mere fact that personal data also concerns companies cannot be a mitigating circumstance.

131. Furthermore, Y states that it has taken measures to ensure that data is processed correctly. In particular, it claims to have entered into contractual guarantees, limited the amount of data made available to its customers, and updated and deleted the data. The Dispute Chamber acknowledges these measures but rules that they are part of the legal obligations to which Y is bound, and thus do not constitute "special circumstances." Compliance with legal obligations is, as previously noted with reference to EDPB guidelines, a neutral circumstance.

132. Moreover, Y believes that the total administrative fine would be disproportionate in light of Article 83.1 and 83.2 GDPR. It substantiates this point by referring to decision 07/2024 of January 16, 2024, of the Dispute Chamber, in which the Dispute Chamber imposed administrative fines on Z6. According to Y, the sanction imposed on Y would be significantly heavier in relation to the sanction imposed on Z6. The Dispute Chamber rules that these two separate cases are different and cannot be compared. This was confirmed by the summary proceedings judge in decision 2025/25/C, in which the president of the court ruled that the situation of other companies, specifically Z6, is not comparable to that of Y.

133. Furthermore, Y asserts that the intended violations have a very minor factual impact on the rights of the data subjects. This data would concern companies and would be publicly available. Regarding the latter claim, that the data is publicly available, the Dispute Chamber concludes that this was not demonstrated by the defendant. Y expressly stated that the source of the data was not the KBO and

provided no other evidence that the data would be publicly available at all times. Concerning the factual impact on the data subjects, the Dispute Chamber reminds that the processing involves a large number of data subjects. Furthermore, the Dispute Chamber recalls that these data subjects did not receive information from Y regarding the processing of their data. They thus find themselves in a situation where their personal data is unlawfully and without their knowledge repeatedly traded. This can create a feeling of losing control over their data and touches the core of the right to data protection.

134. In conclusion, the Dispute Chamber rules that Y does not present any new elements in its response to the sanction form based on which the administrative fines should be adjusted.

IV.2.8. Decision

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135. Given the previous assessment of the relevant documents as well as the circumstances specific to this case, the Dispute Chamber finds it appropriate to impose an administrative fine of 8,000 EUR on the defendant based on Article 83.2 GDPR, Article 100, §1, 13°, and Article 101 WOG due to the violation of the principle of legality (5.1.a, 6.1, and 5.2 GDPR).

136. Given the previous assessment of the relevant documents as well as the circumstances specific to this case, the Dispute Chamber finds it appropriate to impose an administrative fine of 6,000 EUR on the defendant based on Article 83.2 GDPR, Article 100, §1, 13°, and Article 101 WOG due to the violation of the information and transparency obligations (Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR) in the processing of personal data.

137. Given the previous assessment of the relevant documents as well as the circumstances specific to this case, the Dispute Chamber finds it appropriate to impose an administrative fine of 6,000 EUR on the defendant based on Article 83.2 GDPR, Article 100, §1, 13°, and Article 101 WOG due to the violation of the information and transparency obligations (Articles 12.1, 14.1, 14.2, 5.2, 24.1 as well as Article 25.1 GDPR) in the processing of personal data.

V. Immediate Enforceability

138. In its response to the sanction form, Y requested the suspension of the immediate enforceability of the sanctions.

139. Regarding the order based on Article 100, §1, 10° of the WOG (the order to delete personal data for which Y cannot demonstrate that it has a valid legal basis for processing), the Dispute Chamber reminds that this is not immediately enforceable based on Art. 108, §1, WOG.

140. Regarding the other decisions based on Article 100 WOG, the Dispute Chamber refuses the requests for suspension of immediate enforceability for the following reasons.

141. Firstly, immediate enforceability is the standard situation for the national legislator. The European legislator has granted powers to the authority to take measures: it is thus the authority that decides which (corrective) measure is most appropriate to implement or impose on the defending party.

58 Judgment of the CJEU of December 7, 2023, UF and AB v. Land Hessen (Schufa), joined cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, specifically §68; This obviously concerns the initial assessment regarding such measures and does not pertain to the issue of full jurisdiction in the event a provision is instituted.

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142. The possibility of legal recourse before a judicial authority after a decision has been made does not detract from the powers of the authority. In light of the separation of powers, the judiciary must assess a posteriori whether the supervisory authority has acted within the legal framework and within its discretionary powers. When the judge exercises their own authority to suspend enforceability, this is a decision that falls within their evaluative jurisdiction.

143. It cannot be the standard situation—considering the credibility of the powers granted to the authority by European and national legislators—that the enforceability of the decisions and measures taken by an authority is suspended as soon as a party requests it. If this were indeed the standard situation, it would undermine the entire purpose of the legislator to act decisively and effectively in a digitalized society. This does not align with the teleological design of the powers granted to the authority under the GDPR.

144. In this sense, it is indeed the intention, both of the European and the Belgian legislator, that a party against whom the Dispute Chamber takes measures complies without unnecessary delay with the provisions of the authority's decision. The Dispute Chamber again points out that this does not mean that a suspension cannot occur, but it must be based on significant grounds.

145. Secondly, where the enforceability is not suspended and the decision is subsequently assessed as flawed, legal redress is in any case possible, as the rulings of the Market Court constitute the final substantive judgment in the relevant matters. There is no indication in this case that such legal redress would be difficult or impossible.

VI. Publication of the Decision

146. In Decision 2025/25/C, the president of the court ruled that the discussion in the present file appears to have a broader impact and also affects the rights and interests of third parties.

Furthermore, it appears from the inspection report that the respondent processes a large number of data. Given the importance of transparency regarding the decision-making of the Dispute Chamber, the public interest, and the rights of third parties, this decision will be published on the website of the Data Protection Authority. However, it is not necessary for the identification details of the parties to be disclosed directly for this purpose.